



POLICE DEPARTMENT

March 26, 2025

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In the Matter of the Charges and Specifications	:	Case No.
- against -	:	2023-28169
Police Officer Wojciech Bagan	:	
Tax Registry No. 948637	:	
Fleet Services Division	:	

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At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Paul M. Gamble, Sr.
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Stephanie McCarthy, Esq.
Christine Maloney, Esq.
Department Advocate's Office
One Police Plaza, Room 402
New York, NY 10038

For the Respondent: Police Officer Wojciech Bagan
Respondent appeared pro se

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Said Police Officer Wojciech Bagan, while assigned to the Quartermaster Section, on or about March 28, 2023, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: said Police Officer Bagan intentionally disobeyed an order of protection in favor of a person known to the Department.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED CONDUCT

N.Y. Penal Law § 215.50(3)

CRIMINAL CONTEMPT IN
THE SECOND DEGREE

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on February 25, 2025.

Respondent, appearing pro se, entered a plea of Not Guilty to the subject charge.¹ The

Department called Sergeant Alexis Vasquez of the Internal Affairs Bureau as a witness.

Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all the evidence in this matter, I find Respondent Guilty of Specification 1. I recommend that he forfeit 30 suspension days, previously served.

ANALYSIS

The following is a summary of the facts which are not in dispute. On March 28, 2023, a Temporary Order of Protection was issued by the Honorable Wayne A. Humphrey, Yonkers Family Court, in favor of Respondent's ex-wife² and two minor children (Dept. Ex. 1). This order specified that Respondent was to refrain from engaging in several specified behaviors; in particular, he was ordered not to communicate with his ex-wife, except to discuss the health and

¹ At the start of trial, the Department dismissed a second specification, alleging failure to make timely notifications to the Department regarding an Order of Protection (T. 5).

² At the time of the Family Court proceeding, Respondent and his ex-wife were still married but contemplating divorce proceedings (T. 37). At the time of this hearing, Respondent's marriage has been dissolved.

well-being of their children or to arrange supervised visits (*Id.*, T. 31-34). This Order of Protection was issued during a court proceeding that day, at which Respondent and his ex-wife were present (T. 30). Among other things, the Order directed Respondent to vacate the home he shared with his ex-wife and children (Dept. Ex. 1).

Respondent admits that on March 28, 2023, he sent a text message by phone to his ex-wife, the contents of which read: "You have until tomorrow. I'm moving back in house. I know my rights. I can defend myself if you assaulting me. Pack your bags and move to your parents. I will talk to you about kids we have equal rights to see them!" (Dept. Ex. 2). The text message was sent after the Family Court proceedings described above (T. 36-37, 55). Respondent was arrested later that same day for violating the Order of Protection (T. 29-30).

In this case, there are two disputed issues: (1) whether Respondent was served with the Order of Protection; and (2) whether the content of the text message Respondent admitted sending to his ex-wife violates the Order of Protection.

Respondent testified that his ex-wife and her lawyer presented lies during the Family Court proceeding to better her position in the contemplated divorce proceedings. He asserted that his right to his residence, his children, and his freedom of speech had been violated Finally, Respondent claimed his right to defend himself and his right to possess firearms have been violated by this Department (T. 48).

Respondent admitted in his testimony that he was present at the Family Court proceeding on March 28, 2023, but was ejected from the courtroom; he testified further that he was never informed of the issuance of the Order of Protection in open court as the language sets forth therein (T. 49-50, 52). He testified that the judge who signed the Order perjured himself by

“check[ing] the box” indicating Respondent had been so advised (T. 50, 55). Respondent testified that the Order of Protection was issued unlawfully and denied violating it (T. 53).

On cross-examination, Respondent conceded that there had been a previous Order of Protection issued in the Family Court litigation on February 28, 2023, which Order continued in effect until March 28, 2023 (T. 55-56). He further conceded that there was an exception to the Order’s general prohibition against communicating with his ex-wife to the extent necessary to discuss their children (T. 56). Respondent admitted that the text message he sent to his ex-wife on March 28, 2023, did not pertain to his children (*Id.*). He denied that his use of the words, “you have until tomorrow,” in the text message constituted a threat (T. 56-57).

Spec. 1: Violation of an Order of Protection

I find the Department Advocate has established by a preponderance of the credible, relevant evidence that Respondent violated an Order of Protection on March 28, 2023.

There is no dispute that the Family Court of Yonkers, New York issued such an Order on March 28, 2023. Respondent has admitted that he sent a text message to his ex-wife that same day, an act which the Order explicitly prohibited, unless such communication concerned Respondent’s children. Respondent, during his in-court testimony, conceded that the content of the text message he sent had no relation to his children. The clear language of the text message carried with it an ultimatum that Respondent’s ex-wife had “until tomorrow” to comply with his unlawful demand that she vacate their family home, in direct contravention of the Family Court’s Order to him to stay away from those premises. Based on the totality of the circumstances, I find that Respondent’s communication with his ex-wife was tantamount to a threat, also in violation of the explicit language of the Order.

I do not credit Respondent's assertion that he was not in the courtroom and did not hear the parameters of the Order of Protection. The Order of Protection states otherwise. Courts have long presumed official duties have been properly discharged unless clear evidence to the contrary is presented (*see United States v. Chem. Found., Inc.*, 272 U.S. 1, 15 [1926]; *see also* NY CPLR §4540). No such evidence was offered here.

Based upon the foregoing, I find Respondent Guilty of Specification 1.

PENALTY

In order to determine an appropriate penalty, this Tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances, including potential aggravating and mitigating factors established in the record. Respondent's employment history also was examined. *See* 38 RCNY § 15-07. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

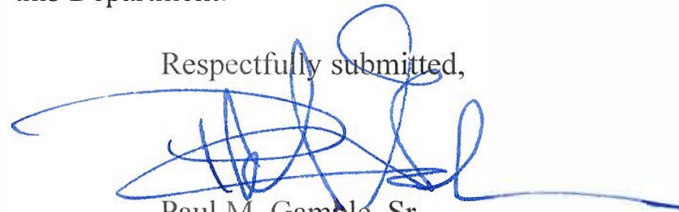
Respondent, who was appointed to the Department on July 6, 2010, has been found guilty of violating an Order of Protection. The presumptive penalty is 30 suspension days; additional conditions, such as counseling, may also be imposed. The mitigated penalty is 20 days. The aggravated penalty is termination (Matrix, p. 36). Respondent has previously served 30 suspension days in connection with this incident.

The Department Advocate has recommended the mitigated penalty of 20 suspension days, already served. Based upon the record before me, I find the recommended penalty insufficient. Viewed in the light most favorable to Respondent, I find no evidence of mitigation. In his sworn testimony, he insisted that he had been wronged by the Family Court, and accused the court system, including the Family Court judge, of being corrupt. He then included this

Department in his screed of victimization, claiming, without justification, that his rights to property, to bear firearms, and right to counsel were violated. This Tribunal acknowledges that Respondent appeared pro se; however, in this proceeding he displayed contempt for the rule of law, believing that it should be subordinate to his preferences. Such conduct warrants no mitigation.

Based upon the entire record, I recommend that Respondent forfeit 30 suspension days, already served. In addition, I recommend that Respondent continue to participate in family and psychological counseling, as directed by this Department.

Respectfully submitted,

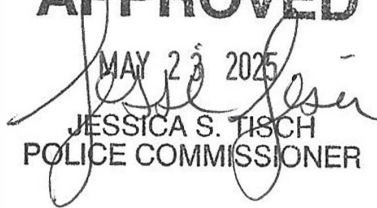
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Paul M. Gamble, Sr.
Assistant Deputy Commissioner Trials

APPROVED

MAY 23 2025

JESSICA S. TISCH
POLICE COMMISSIONER

A handwritten signature in blue ink, appearing to read "Jessica S. Tisch", written over the typed name.



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER WOJCIECH BAGAN
TAX REGISTRY NO. 948637
DISCIPLINARY CASE NO. 2023-28169

Respondent was appointed to the Department on July 6, 2010. On his three most recent annual performance evaluations, he was rated “Exceptional” for 2022, 2023 and 2024. He has been awarded two medals for Excellent Police Duty.

Respondent has no formal disciplinary history. In connection with the instant matter, Respondent was suspended without pay from March 29, 2023, to April 27, 2023. Additionally, he was placed on Level 2 Discipline Monitoring in May 2023. Monitoring is ongoing.

For your consideration.

Paul M. Gamble, Sr.
Assistant Deputy Commissioner Trials